

LINE	CASE NO.	CASE TITLE	TENTATIVE RULING
9:01 1	24CV448840	<i>Skanska-Shimmick-Herzog v. LAN/T.Y. Lin, et al.</i>	Hearing on Verified Application of Robert J. Harris to appear <i>pro hac vice</i> for Cross-Defendant Hatch Associates Consultants, Inc. The Verified Application of Robert J. Harris to appear <i>pro hac vice</i> for Cross-Defendant Hatch Associates Consultants, Inc. is well supported and complies with California Rule of Court 9.40. Accordingly, the Verified Application is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was filed with this Verified Application. SO ORDERED.
9:01 2	25CV483557	<i>Jane Doe v. Google LLC, et al.</i>	Hearing on Verified Application of Zara H. Shore to appear <i>pro hac vice</i> for Defendant Google LLC. The Verified Application of Cori Schreider to appear <i>pro hac vice</i> for Defendant Zara H. Shore is well supported and complies with California Rule of Court 9.40. Accordingly, the Verified Application is GRANTED in all respects. After this hearing, the Court will sign and file the Proposed Order that was filed with this Verified Application. SO ORDERED.
9:01 3			
9:01 4			

9:01 5			
9:00 <u>1</u>	25CV459214	<i>Philip Devera</i> <i>v.</i> <i>General Motors, LLC</i>	Order on Defendant's Demurrer to Plaintiff's First Amended Complaint <i>See Line 1 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 <u>2</u>	25CV480264	<i>Lee Drone</i> <i>v.</i> <i>Peter D. Bear, et al.</i>	Order on Defendants Allen S. Porter and Peter D. Bear's Motion to Quash Service of Summons for Lack of Personal Jurisdiction <i>See Line 2 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 <u>3</u>	23CV417705	<i>The Heights Residence, LLC</i> <i>v.</i> <i>Victoria Soboleva, et al.</i>	Order on Plaintiff's Motion For Summary Adjudication <i>See Line 3 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 <u>4</u>	23CV426612	<i>Bathena Dixon</i> <i>v.</i> <i>General Motors, LLC, et al.</i>	Order on Defendant's Motion for Summary Judgment or, in the alternative, Summary Adjudication <i>See Line 4 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.

9:00 5	22CV400450	<i>Norma Rojas</i> <i>v.</i> <i>Spread Your Wings, LLC, et al.</i>	Order on Plaintiff's Motion to deem the truth of all matters specified in RFAs admitted by Defendant, and for Sanctions <i>See Line 5 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 6	25CV477783	<i>Joseph Rostam</i> <i>v.</i> <i>Daniel A. Gonzales, et al.</i>	Order on Plaintiff's Amended Motion for Case Management Relief, to Compel Good-Faith Mediation Participation, and for Sanctions <i>See Line 6 below for complete tentative ruling.</i> After the hearing, the Court will prepare and file the formal Order.
9:00 7	24CV451323	<i>City of Sunnyvale</i> <i>v.</i> <i>Rosella Montoya Lopes, et al.</i>	Order on Gerald L. Nigro's Objection to Receiver's Status Report Dated November 26, 2025 As the Court dismissed without prejudice this receivership action on agreement of all parties (including Mr. Nigro, whom the Court first appointed as Successor in Interest to the deceased Defendant Lopes) at the July 8, 2026 Case Management Conference (<i>see</i> 07/08/2026 Minute Order), this Motion objecting to the November 26, 2026 Receiver's Report is VACATED as MOOT. SO ORDERED.

9:00 <u>8</u>	25CV456459	<i>Vimal Kohli</i> <i>v.</i> <i>Vishal Saxena, et al.</i>	Order on Plaintiff Vimal Kohli's Motion to Set Aside and Vacate the Court's Order Entered on November 26, 2025 See Line 8 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>9</u>	25CV478692	<i>Anthony Tomol</i> <i>v.</i> <i>Ford Motor Company, et al.</i>	Order on Defendant Hemborg Ford's Motion to Compel Arbitration and Stay Civil Action See Line 9 below for complete tentative ruling. After the hearing, the Court will prepare and file the formal Order.
9:00 <u>10</u>			
9:00 <u>11</u>			
9:00 <u>12</u>			
9:00 <u>13</u>			
9:00 <u>14</u>			
9:00 <u>15</u>			

Line 1

Case Name: *Philip Devera v. General Motors, LLC*

Case No.: 25CV459214

SUPERIOR COURT OF CALIFORNIA

COUNTY OF SANTA CLARA

Defendant General Motors LLC (“GM” or “Defendant”) demurs under Code of Civil Procedure Section 430.10(e) to the First Amended Complaint (“FAC”) of Plaintiff Philip Devera (“Plaintiff”) on the grounds that:

- Plaintiff’s First, Second, and Third Causes of Action alleging violations of the Song-Beverly Consumer Warranty Act are time-barred due to the expiration of the statutes of limitation and repose;
- Plaintiff’s Fourth Cause of Action for Breach of Implied Warranty is time-barred by the four-year statute of limitations;
- Plaintiff cannot state his Fifth Cause of Action for Fraudulent Inducement-Concealment because it is time-barred by the three-year statute of limitations; and
- Plaintiff fails to sufficiently plead the essential elements of a fraud claim.

Notice of Demurrer (the “Demurrer”) at 1:3-12 (filed: Jan. 5, 2026)

Defendants’ Demurrer came on for hearing on July 15, 2026, at 9:00 AM in Department 16. After reviewing all the papers and the record, and giving counsel for all parties the full and fair opportunity to be heard, the Court finds and rules as follows.

I. Factual Allegations

According to the First Amended Complaint (“FAC”), on July 4, 2018, Plaintiff entered into a warranty contract with GM for a 2018 Chevrolet Volt, vehicle identification number 1G1RD6S50JU137160 (“Subject Vehicle”), which was manufactured and/or distributed by GM and sold by Capitol Chevrolet. The contract warranted the Subject Vehicle “bumper-to-bumper”, including but not limited to powertrain, emission, etc. (FAC ¶¶ 6-8)

Before Plaintiff’s purchase GM knew that vehicles equipped with the same 1.5L engine, as installed in the Subject Vehicle, suffered from one or more defects that could cause loss of power while driving, running rough, or engine misfires. (“Engine Defect”) GM acquired this knowledge through various sources of information, including but not limited to pre-production testing, consumer complaints, dealership repair orders, and testing conducted by GM in response to consumer complaints. However, GM and its